

25NWCV01492 25NWCV01492

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Case Number: 25NWCV01492 Hearing Date: July 2, 2026 Dept: P

DANIEL GAMINO v. EUREKA RESTAURANT GROUP LLC, ET AL.

CASE NO.: 25NWCV01492

HEARING: 07/02/2026 @ 9:30 AM

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TENTATIVE ORDER

Defendant CenterCal Properties LLC's motion for leave to file a cross-complaint is GRANTED. Defendant's cross-complaint filed on June 12, 2026 will be deemed filed upon notice of this ruling.

Moving party to give notice.

Defendant CenterCal Properties LLC (CenterCal) moves for leave to file a cross complaint against Defendant Eureka Restaurant Group LLC (Eureka).

Background

On April 25, 2025, Plaintiff Daniel Gamino (Plaintiff) filed this premises liability action against Defendants Eureka, CenterCal, Donovan Flores, and Does 1 through 50. This action arises out of injuries Plaintiff sustained on June 6, 2024, at a Eureka! restaurant located at 11167 183rd St., Cerritos, California 90703 (Subject Premises) after slipping and falling on oil or grease on the floor. (Complaint, ¶¶ 7-9.) The complaint asserts two causes

of action: (1) negligence and (2) premises liability.

This is a continuation. On June 12, 2026, this motion first came on for hearing. The Court continued the hearing on this motion to permit CenterCal to file the proposed cross-complaint for the Court's review.

On June 12, 2026, CenterCal filed the proposed cross-complaint.

Legal Standard

Code of Civil Procedure section 428.10 provides: "A party against whom a cause of action has been asserted in a complaint or cross-complaint may file a cross-complaint setting forth either or both of the following:"

(a) Any cause of action he has against any of the parties who filed the complaint or cross-complaint against him.

(b) Any cause of action he has against a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him.

"A party who fails to plead a cause of action subject to the requirements of this article, whether through oversight, inadvertence, mistake, neglect, or other cause, may apply to the court for leave to amend his pleading, or to file a cross-complaint, to assert such cause at any time during the course of the action. The court, after notice to the adverse party, shall grant, upon such terms as may be just to the parties, leave to amend the pleading, or to file the cross-complaint, to assert such cause if the party who failed to plead the cause acted in good faith. This subdivision shall be liberally construed to avoid forfeiture of causes of action." (Code Civ. Proc., § 426.50.)

A cross-complaint to a party other than the parties who

filed the complaint or cross-complaint against him or her may be filed at any time before the court sets a date for trial without leave. (Code Civ. Proc., § 428.50, subd. (b), (c).)

Discussion

CenterCal moves for leave to file a cross-complaint. CenterCal seeks leave to file a cross-complaint against Eureka for indemnity and contribution arising out of the same transactions and occurrences in Plaintiff's complaint. This motion is unopposed.

CenterCal argues that the proposed cross-complaint arises from the same underlying events alleged in Plaintiff's complaint. Specifically, CenterCal argues that the proposed cross-complaint seeks indemnity based on the terms of a lease agreement (Lease) between it and Eureka covering injuries arising from oil spills. (Beverly Decl., ¶ 3.) CenterCal states that it submitted tenders of defense and indemnity to Eureka's injurer based on the Lease, however, CenterCal did not receive any responses. (Beverly Decl., ¶¶ 4-5.) CenterCal states that it delayed filing this cross-complaint in good faith as it anticipated that Eureka's insurer would accept the tender and resolve the indemnity obligations without Court intervention. (Beverly Decl., ¶ 6.) CenterCal filed this motion promptly after receiving no responses. (Beverly Decl., ¶ 7.)

Upon review of CenterCal's moving papers and proposed cross-complaint, the Court finds that Here, the Court finds that the cross-complaint arises out of the same transaction and occurrence as Plaintiff's complaint. The Court notes that "[c]ross-complaints for comparative equitable indemnity would appear virtually always transactionally related to the main action." (Time for Living, Inc. v. Guy Hatfield Homes/All American Development, Co. (1991) 230 Cal.App.3d 30, 38.) Moreover, CenterCal shows that no party will suffer substantial prejudice and the interests of justice support granting leave.

Accordingly, CenterCal's motion for leave to file a cross-complaint is GRANTED. CenterCal's cross-complaint filed on June 12, 2026 will be deemed filed upon notice of this ruling.